

And the school principal confirmed that Morrissey-Berru was expected to do these things.⁵

2

In 2014, OLG asked Morrissey-Berru to move from a full-time to a part-time position, and the next year, the school declined to renew her contract. She filed a claim with the Equal Employment Opportunity Commission (EEOC), received a right-to-sue letter, App. 169, and then filed suit under the Age Discrimination in Employment Act of 1967, 81 Stat. 602, as amended, 29 U.S.C. § 621 *et seq.*, claiming that the school had demoted her and had failed to renew her contract so that it could replace her with a younger teacher, App. 168–169. The school maintains that it based its decisions on classroom performance—specifically, Morrissey-Berru’s difficulty in administering a new reading and writing program, which had been introduced by the school’s new principal as part of an effort to maintain accreditation and improve the school’s academic program. App. to Pet. for Cert. in No. 19–267, at 66a–67a, 70a, 73a.

Invoking the “ministerial exception” that we recognized in *Hosanna-Tabor*, OLG successfully moved for summary judgment, but the Ninth Circuit reversed in a brief opinion. 769 Fed. Appx. 460, 461 (2019). The court acknowledged that Morrissey-Berru had “significant religious responsibilities” but reasoned that “an employee’s duties alone are not dispositive under *Hosanna-Tabor*’s framework.” *Ibid.* Unlike Perich, the court noted, Morrissey-Berru did not have the formal title of “minister,” had limited formal religious training, and “did not hold herself out to the public as a religious leader or minister.” *Ibid.* In the court’s view, these “factors” outweighed the fact that she was invested with significant religious responsibilities. *Ibid.* The court therefore held that Morrissey-Berru did not fall within the “ministerial

⁵ Record in No. 2:16–CV–09353 (CD Cal.), Doc. 33, ¶9.

Opinion of the Court

exception.” OLG filed a petition for certiorari, and we granted review.

B

1

The second case concerns the late Kristen Biel, who worked for about a year and a half as a lay teacher at St. James School, another Catholic primary school in Los Angeles. For part of one academic year, Biel served as a long-term substitute teacher for a first grade class, and for one full year she was a full-time fifth grade teacher. App. 336–337. Like Morrissey-Berru, she taught all subjects, including religion. *Id.*, at 288; ER 588 in No. 17–55180 (CA9) (St. James).⁶

Biel had a B. A. in liberal studies and a teaching credential. App. 244. During her time at St. James, she attended a religious conference that imparted “[d]ifferent techniques on teaching and incorporating God” into the classroom. *Id.*, at 260–262. Biel was Catholic.⁷

Biel’s employment agreement was in pertinent part nearly identical to Morrissey-Berru’s. Compare *id.*, at 154–164, with *id.*, at 320–329. The agreement set out the same religious mission; required teachers to serve that mission; imposed commitments regarding religious instruction, worship, and personal modeling of the faith; and explained that teachers’ performance would be reviewed on those bases.

Biel’s agreement also required compliance with the St. James faculty handbook, which resembles the OLG handbook. *Id.*, at 322. Compare ER 641–ER 651 (OLG) with ER 565–ER 597 (St. James). The St. James handbook defines “religious development” as the school’s first goal and

⁶ Biel died during the pendency of this suit, which has subsequently been litigated by her husband as representative of her estate. Record in No. 17–55180 (CA9), Docs. 112, 113.

⁷ The school principal stated that she prefers that teachers at the school be Catholic. ER 32 (St. James).

provides that teachers must “mode[l] the faith life,” “exemplif[y] the teachings of Jesus Christ,” “[i]ntegrat[e] Catholic thought and principles into secular subjects,” and “[p]repar[e] students to receive the sacraments.” ER 570–ER 572. The school principal confirmed these expectations.⁸

Like Morrissey-Berru, Biel instructed her students in the tenets of Catholicism. She was required to teach religion for 200 minutes each week, App. 257–258, and administered a test on religion every week, *id.*, at 256–257. She used a religion textbook selected by the school’s principal, a Catholic nun. *Id.*, at 255; ER 37 (St. James). The religious curriculum covered “the norms and doctrines of the Catholic Faith, including . . . the sacraments of the Catholic Church, social teachings according to the Catholic Church, morality, the history of Catholic saints, [and] Catholic prayers.” App. to Pet. for Cert. in No. 19–348, p. 83a.

Biel worshipped with her students. At St. James, teachers are responsible for “prepar[ing] their students to be active participants at Mass, with particular emphasis on Mass responses,” ER 587, and Biel taught her students about “Catholic practices like the Eucharist and confession,” ER 226–ER 227. At monthly Masses, she prayed with her students. App. to Pet. for Cert. in No. 19–348, at 82a, 94a–96a. Her students participated in the liturgy on some occasions by presenting the gifts (bringing bread and wine to the priest). *Ibid.*

Teachers at St. James were “required to pray with their students every day,” *id.*, at 80a–81a, 110a, and Biel observed this requirement by opening and closing each school day with prayer, including the Lord’s Prayer or a Hail Mary, *id.*, at 81a–82a, 93a, 110a.

As at OLG, teachers at St. James are evaluated on their fulfillment of the school’s religious mission. *Id.*, at 83a–84a.

⁸ Record in No. 2:15–CV–04248 (CD Cal.), Doc. 67–1, ¶¶4–7.

Opinion of the Court

St. James used the same classroom observation standards as OLG and thus examined whether teachers “infus[ed]” Catholic values in all their teaching and included religious displays in their classrooms. *Id.*, at 83a–84a, 92a. The school’s principal, a Catholic nun, evaluated Biel on these measures. *Id.*, at 106a.

2

St. James declined to renew Biel’s contract after one full year at the school. She filed charges with the EEOC, and after receiving a right-to-sue letter, brought this suit, alleging that she was discharged because she had requested a leave of absence to obtain treatment for breast cancer. App. 337–338. The school maintains that the decision was based on poor performance—namely, a failure to observe the planned curriculum and keep an orderly classroom. See *id.*, at 303; App. to Pet. for Cert. in No. 19–348, at 85a–89a, 114a–115a, 120a–121a.

Like OLG, St. James obtained summary judgment under the ministerial exception, *id.*, at 74a, but a divided panel of the Ninth Circuit reversed, reasoning that Biel lacked Perich’s “credentials, training, [and] ministerial background,” 911 F. 3d 603, 608 (2018).

Judge D. Michael Fisher, sitting by designation, dissented. Considering the totality of the circumstances, he would have held that the ministerial exception applied “because of the substance reflected in [Biel’s] title and the important religious functions she performed” as a “stewar[d] of the Catholic faith to the children in her class.” *Id.*, at 621, 622.

An unsuccessful petition for rehearing en banc ensued. Judge Ryan D. Nelson, joined by eight other judges, dissented. 926 F. 3d 1238, 1239 (2019). Judge Nelson faulted the panel majority for “embrac[ing] the narrowest construction” of the ministerial exception, departing from “the consensus of our sister circuits that the employee’s ministerial function should be the key focus,” and demanding nothing

less than a “carbon copy” of the specific facts in *Hosanna-Tabor*. 926 F. 3d, at 1249 (dissenting opinion). We granted review and consolidated the case with OLG’s. 589 U. S. 1126 (2019).

II

A

The First Amendment provides that “Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof.” Among other things, the Religion Clauses protect the right of churches and other religious institutions to decide matters “‘of faith and doctrine’” without government intrusion. *Hosanna-Tabor*, 565 U. S., at 186 (quoting *Kedroff*, 344 U. S., at 116). State interference in that sphere would obviously violate the free exercise of religion, and any attempt by government to dictate or even to influence such matters would constitute one of the central attributes of an establishment of religion. The First Amendment outlaws such intrusion.

The independence of religious institutions in matters of “faith and doctrine” is closely linked to independence in what we have termed “‘matters of church government.’” 565 U. S., at 186. This does not mean that religious institutions enjoy a general immunity from secular laws, but it does protect their autonomy with respect to internal management decisions that are essential to the institution’s central mission. And a component of this autonomy is the selection of the individuals who play certain key roles.

The “ministerial exception” was based on this insight. Under this rule, courts are bound to stay out of employment disputes involving those holding certain important positions with churches and other religious institutions. The rule appears to have acquired the label “ministerial exception” because the individuals involved in pioneering cases were described as “ministers.” See *McClure v. Salvation Army*, 460 F. 2d 553, 558–559 (CA5 1972); *Rayburn v. General Conference of Seventh-day Adventists*, 772 F. 2d 1164, 1168 (CA4

Opinion of the Court

1985). Not all pre-*Hosanna-Tabor* decisions applying the exception involved “ministers” or even members of the clergy. See, e. g., *EEOC v. Southwestern Baptist Theological Seminary*, 651 F. 2d 277, 283–284 (CA5 1981); *EEOC v. Roman Catholic Diocese of Raleigh, N. C.*, 213 F. 3d 795, 800–801 (CA4 2000). But it is instructive to consider why a church’s independence on matters of “faith and doctrine” requires the authority to select, supervise, and if necessary, remove a minister without interference by secular authorities. Without that power, a wayward minister’s preaching, teaching, and counseling could contradict the church’s tenets and lead the congregation away from the faith.⁹ The ministerial exception was recognized to preserve a church’s independent authority in such matters.

B

When the so-called ministerial exception finally reached this Court in *Hosanna-Tabor*, we unanimously recognized that the Religion Clauses foreclose certain employment discrimination claims brought against religious organizations. 565 U. S., at 188. The constitutional foundation for our holding was the general principle of church autonomy to which we have already referred: independence in matters of faith and doctrine and in closely linked matters of internal government. The three prior decisions on which we primarily relied drew on this broad principle, and none was exclusively concerned with the selection or supervision of clergy. *Watson v. Jones*, 13 Wall. 679 (1872), involved a dispute about the control of church property, and both *Kedroff*, 344 U. S. 94, and *Serbian Eastern Orthodox Diocese for United States and Canada v. Milivojevic*, 426 U. S. 696 (1976), also con-

⁹ Cf. McConnell, Establishment and Disestablishment at the Founding, Part I: Establishment of Religion, 44 Wm. & Mary L. Rev. 2105, 2141 (2003) (politically appointed ministers in colonial Virginia were, in the view of the faithful, often “less than zealous in their spiritual responsibilities and less than irreproachable in their personal morals”).

cerned the control of property, as well as the appointment and authority of bishops.

In addition to these precedents, we looked to the “background” against which “the First Amendment was adopted.” *Hosanna-Tabor*, 565 U.S., at 183. We noted that 16th-century British statutes had given the Crown the power to fill high “religious offices” and to control the exercise of religion in other ways, and we explained that the founding generation sought to prevent a repetition of these practices in our country. *Ibid.* Because Cheryl Perich, the teacher in *Hosanna-Tabor*, had a title that included the word “minister,” we naturally concentrated on historical events involving clerical offices, but the abuses we identified were not limited to the control of appointments.

We pointed to the various Acts of Uniformity, *id.*, at 182, which dictated what ministers could preach and imposed penalties for non-compliance. Under the 1549 Act, a minister who “preache[d,] declare[d,] or [spoke] any thin[g]” in derogation of any part of the Book of Common Prayer could be sentenced to six months in jail for a first offense and life imprisonment for a third violation. Act of Uniformity, 2 & 3 Edw. 6, ch. 1. In addition, all other English subjects were forbidden to say anything against the Book of Common Prayer in “[i]nterludes[,] play[s,] song[s,] r[h]ymes, or by other open [w]ord[s].” *Ibid.* A 1559 law contained similar prohibitions. See Act of Uniformity, 1 Eliz., ch. 2.

After the Restoration, Parliament enacted a new law with a similar aim. Ministers and “Lecturer[s]” were required to pledge “unfeigned assent and consent” to the Book of Common Prayer, and all schoolmasters, private tutors, and university professors were required to “conforme to the Liturgy of the Church of England” and not “to endeavour any change or alteration” of the church. Act of Uniformity, 1662, 14 Car. 2, ch. 4.

British law continued to impose religious restrictions on education in the 18th century and past the time of the adop-

Opinion of the Court

tion of the First Amendment. The Schism or Established Church Act of 1714, 13 Ann., ch. 7, required that schoolmasters and tutors be licensed by a bishop. Non-conforming Protestants, as well as Catholics and Jews, could not teach at or attend the two universities, and as Blackstone wrote, “[p]ersons professing the popish religion [could] not keep or teach any school under pain of perpetual imprisonment.” 4 W. Blackstone, *Commentaries on the Laws of England* 55 (8th ed. 1778). The law also imposed penalties on “any person [who] sen[t] another abroad to be educated in the popish religion . . . or [who] contribute[d] to their maintenance when there.” *Id.*, at 55–56.

British colonies in North America similarly controlled both the appointment of clergy, see *Hosanna-Tabor*, 565 U. S., at 183, and the teaching of students. A Maryland law “prohibited any Catholic priest or lay person from keeping school, or taking upon himself the education of youth.” 2 T. Hughes, *History of the Society of Jesus in North America: Colonial and Federal* 443–444 (1917). In 1771, the Governor of New York was instructed to require that all schoolmasters arriving from England obtain a license from the Bishop of London. 3 C. Lincoln, *The Constitutional History of New York* 485, 745 (1906). New York law also required an oath and license for any “‘vagrant Preacher, Moravian, or disguised Papist’” to “‘Preach or Teach, Either in Public or Private.’” S. Cobb, *The Rise of Religious Liberty in America* 358 (1902).

C

In *Hosanna-Tabor*, Cheryl Perich, a kindergarten and fourth grade teacher at an Evangelical Lutheran school, filed suit in federal court, claiming that she had been discharged because of a disability, in violation of the Americans with Disabilities Act of 1990 (ADA), 42 U. S. C. § 12112(a). The school responded that the real reason for her dismissal was her violation of the Lutheran doctrine that disputes should be resolved internally and not by going to outside authori-

ties. We held that her suit was barred by the “ministerial exception” and noted that it “concern[ed] government interference with an internal church decision that affects the faith and mission of the church.” 565 U.S., at 190. We declined “to adopt a rigid formula for deciding when an employee qualifies as a minister,” and we added that it was “enough for us to conclude, in this our first case involving the ministerial exception, that the exception covers Perich, given all the circumstances of her employment.” *Id.*, at 190. We identified four relevant circumstances but did not highlight any as essential.

First, we noted that her church had given Perich the title of “minister, with a role distinct from that of most of its members.” *Id.*, at 191. Although she was not a minister in the usual sense of the term—she was not a pastor or deacon, did not lead a congregation, and did not regularly conduct religious services—she was classified as a “called” teacher, as opposed to a lay teacher, and after completing certain academic requirements, was given the formal title “Minister of Religion, Commissioned.” *Id.*, at 177–178, 191.

Second, Perich’s position “reflected a significant degree of religious training followed by a formal process of commissioning.” *Id.*, at 191.

Third, “Perich held herself out as a minister of the Church by accepting the formal call to religious service, according to its terms,” and by claiming certain tax benefits. *Id.*, at 191–192.

Fourth, “Perich’s job duties reflected a role in conveying the Church’s message and carrying out its mission.” *Id.*, at 192. The church charged her with “‘lead[ing] others toward Christian maturity’” and “‘teach[ing] faithfully the Word of God, the Sacred Scriptures, in its truth and purity and as set forth in all the symbolical books of the Evangelical Lutheran Church.’” *Ibid.* Although Perich also provided instruction in secular subjects, she taught religion four days a week, led her students in prayer three times a day, took her students to a chapel service once a week, and participated in

Opinion of the Court

the liturgy twice a year. “As a source of religious instruction,” we explained, “Perich performed an important role in transmitting the Lutheran faith to the next generation.” *Ibid.*

The case featured two concurrences. In the first, JUSTICE THOMAS stressed that courts should “defer to a religious organization’s good-faith understanding of who qualifies as its minister.” *Id.*, at 196. That is so, JUSTICE THOMAS explained, because “[a] religious organization’s right to choose its ministers would be hollow . . . if secular courts could second-guess” the group’s sincere application of its religious tenets. *Id.*, at 197.

The second concurrence argued that application of the “ministerial exception” should “focus on the function performed by persons who work for religious bodies” rather than labels or designations that may vary across faiths. *Id.*, at 198 (opinion of ALITO, J., joined by KAGAN, J.). This opinion viewed the title of “minister” as “relevant” but “neither necessary nor sufficient.” *Id.*, at 202. It noted that “most faiths do not employ the term ‘minister’” and that some “consider the ministry to consist of all or a very large percentage of their members.” *Ibid.* The opinion concluded that the “‘ministerial’ exception” “should apply to any ‘employee’ who leads a religious organization, conducts worship services or important religious ceremonies or rituals, or serves as a messenger or teacher of its faith.” *Id.*, at 199.

D

1

In determining whether a particular position falls within the *Hosanna-Tabor* exception, a variety of factors may be important.¹⁰ The circumstances that informed our decision

¹⁰ In considering the circumstances of any given case, courts must take care to avoid “resolving underlying controversies over religious doctrine.” *Presbyterian Church in U. S. v. Mary Elizabeth Blue Hull Memorial Presbyterian Church*, 393 U. S. 440, 449 (1969); *ibid.* (“First Amendment values are plainly jeopardized when . . . litigation is made to turn on the

in *Hosanna-Tabor* were relevant because of their relationship to Perich's "role in conveying the Church's message and carrying out its mission," *id.*, at 192, but the other noted circumstances also shed light on that connection. In a denomination that uses the term "minister," conferring that title naturally suggests that the recipient has been given an important position of trust. In Perich's case, the title that she was awarded and used demanded satisfaction of significant academic requirements and was conferred only after a formal approval process, *id.*, at 191, and those circumstances also evidenced the importance attached to her role, *ibid.* But our recognition of the significance of those factors in Perich's case did not mean that they must be met—or even that they are necessarily important—in all other cases.

Take the question of the title "minister." Simply giving an employee the title of "minister" is not enough to justify the exception. And by the same token, since many religious traditions do not use the title "minister," it cannot be a necessary requirement. Requiring the use of the title would constitute impermissible discrimination, and this problem cannot be solved simply by including positions that are thought to be the counterparts of a "minister," such as priests, nuns, rabbis, and imams. See Brief for Respondents 21. Nuns are not the same as Protestant ministers. A brief submitted by Jewish organizations makes the point that "Judaism has many 'ministers,'" that is, "the term 'minister' encompasses an extensive breadth of religious functionaries in Judaism."¹¹ For Muslims, "an inquiry into whether imams or other leaders bear a title equivalent to 'minister'

resolution by civil courts of controversies over religious doctrine and practice"); see also *Serbian Eastern Orthodox Diocese for United States and Canada v. Milivojevic*, 426 U.S. 696, 715, n. 8 (1976) ("It is not to be supposed that the judges of the civil courts can be as competent in the ecclesiastical law and religious faith of all these bodies as the ablest men in each are in reference to their own" (quoting *Watson v. Jones*, 13 Wall. 679, 729 (1872))); cf. *Thomas v. Review Bd. of Ind. Employment Security Div.*, 450 U.S. 707, 714–716 (1981).

¹¹ Brief for COLPA et al. as *Amici Curiae* i, 3 (quotation modified).

Opinion of the Court

can present a troubling choice between denying a central pillar of Islam—*i.e.*, the equality of all believers—and risking loss of ministerial exception protections.”¹²

If titles were all-important, courts would have to decide which titles count and which do not, and it is hard to see how that could be done without looking behind the titles to what the positions actually entail. Moreover, attaching too much significance to titles would risk privileging religious traditions with formal organizational structures over those that are less formal.

For related reasons, the academic requirements of a position may show that the church in question regards the position as having an important responsibility in elucidating or teaching the tenets of the faith. Presumably the purpose of such requirements is to make sure that the person holding the position understands the faith and can explain it accurately and effectively. But insisting in every case on rigid academic requirements could have a distorting effect. This is certainly true with respect to teachers. Teaching children in an elementary school does not demand the same formal religious education as teaching theology to divinity students. Elementary school teachers often teach secular subjects in which they have little if any special training. In addition, religious traditions may differ in the degree of formal religious training thought to be needed in order to teach. See, *e. g.*, Brief for Ethics and Religious Liberty Commission of the Southern Baptist Convention et al. as *Amici Curiae* 12 (“many Protestant groups have historically rejected any requirement of formal theological training”). In short, these circumstances, while instructive in *Hosanna-Tabor*, are not inflexible requirements and may have far less significance in some cases.

What matters, at bottom, is what an employee does. And implicit in our decision in *Hosanna-Tabor* was a recognition that educating young people in their faith, inculcating its

¹² Brief for Asma T. Uddin as *Amicus Curiae* 2.

teachings, and training them to live their faith are responsibilities that lie at the very core of the mission of a private religious school. As we put it, Perich had been entrusted with the responsibility of “transmitting the Lutheran faith to the next generation.” 565 U. S., at 192. One of the concurrences made the same point, concluding that the exception should include “any ‘employee’ who leads a religious organization, conducts worship services or important religious ceremonies or rituals, or serves as a messenger or *teacher of its faith*.” *Id.*, at 199 (opinion of ALITO, J.) (emphasis added).

Religious education is vital to many faiths practiced in the United States. This point is stressed by briefs filed in support of OLG and St. James by groups affiliated with a wide array of faith traditions. In the Catholic tradition, religious education is “‘intimately bound up with the whole of the Church’s life.’” Catechism of the Catholic Church 8 (1994). Under canon law, local bishops must satisfy themselves that “those who are designated teachers of religious instruction in schools . . . are outstanding in correct doctrine, the witness of a Christian life, and teaching skill.” Code of Canon Law, Canon 804, §2 (Eng. transl. 1998).

Similarly, Protestant churches, from the earliest settlements in this country, viewed education as a religious obligation. A core belief of the Puritans was that education was essential to thwart the “chief project of that old deluder, Satan, to keep men from the knowledge of the Scriptures.”¹³ Thus, in 1647, the Massachusetts General Court passed what has been called the Old Deluder Satan Act, requiring every sizable town to establish a school.¹⁴ Most of the oldest educational institutions in this country were originally established by or affiliated with churches, and in recent years, non-

¹³ Old Deluder Satan Act of 1647, in *The Laws and Liberties of Massachusetts* 47 (M. Farrand ed. 1929).

¹⁴ *Ibid.*

Opinion of the Court

denominational Christian schools have proliferated with the aim of inculcating Biblical values in their students.¹⁵ Many such schools expressly set themselves apart from public schools that they believe do not reflect their values.¹⁶

Religious education is a matter of central importance in Judaism. As explained in briefs submitted by Jewish organizations, the Torah is understood to require Jewish parents to ensure that their children are instructed in the faith.¹⁷ One brief quotes Maimonides's statement that religious instruction "is an obligation of the highest order, entrusted only to a schoolteacher possessing 'fear of Heaven.'" ¹⁸ "The contemporary American Jewish community continues to place the education of children in its faith and rites at the center of its communal efforts." ¹⁹

Religious education is also important in Islam. "[T]he acquisition of at least rudimentary knowledge of religion and its duties [is] mandatory for the Muslim individual."²⁰ This precept is traced to the Prophet Muhammad, who proclaimed that "[t]he pursuit of knowledge is incumbent on every Muslim."²¹ "[T]he development of independent private Islamic

¹⁵ See P. Parsons, *Inside America's Christian Schools* (1987); see also Association of Christian Schools International, *Why Christian Schooling?*, <https://www.acsi.org/membership/why-christian-schooling>; Association of Classical Christian Schools, *What is CCE?*, <https://classicalchristian.org/what-is-cce/?v=a44707111a05>.

¹⁶ R. Dreher, *The Benedict Option* 146, 155, 160 (2017); see, e. g., J. Ekeland & B. Walton, *Discover Christian Schools: Ten Differences*, https://discoverchristianschools.com/wp-content/uploads/2019/02/DCS_TenDifferences.pdf.

¹⁷ See Deuteronomy 6:7, 11:19.

¹⁸ Brief for General Conference of Seventh-day Adventists et al. as *Amici Curiae* 7–9 (quoting Maimonides, *Mishne Torah*, *Hilkhot Talmud Torah* 1:2; 2:1, 3).

¹⁹ Brief for Church of God in Christ, Inc., et al. as *Amici Curiae* 15.

²⁰ Afsaruddin, *Muslim Views on Education: Parameters, Purview, and Possibilities*, 44 *J. Cath. Legal Studies* 143, 143–144 (2005).

²¹ *Id.*, at 143.

schools ha[s] become an important part of the picture of Muslim education in America.”²²

The Church of Jesus Christ of Latter-day Saints has a long tradition of religious education, with roots in revelations given to Joseph Smith. See Doctrine and Covenants of the Church of Jesus Christ of Latter-day Saints §93:36 (2013). “[T]he Church Board of Education has established elementary, middle, or secondary schools in which both secular and religious instruction is offered.”²³

Seventh-day Adventists “trace the importance of education back to the Garden of Eden.”²⁴ Seventh-day Adventist formation “restore[s] human beings into the image of God as revealed by the life of Jesus Christ” and focuses on the development of “knowledge, skills, and understandings to serve God and humanity.”²⁵

This brief survey does not do justice to the rich diversity of religious education in this country, but it shows the close connection that religious institutions draw between their central purpose and educating the young in the faith.

2

When we apply this understanding of the Religion Clauses to the cases now before us, it is apparent that Morrissey-Berru and Biel qualify for the exemption we recognized in *Hosanna-Tabor*. There is abundant record evidence that they both performed vital religious duties. Educating and forming students in the Catholic faith lay at the core of the mission of the schools where they taught, and their employ-

²² Haddad & Smith, Introduction: The Challenge of Islamic Education in North America, in *Educating the Muslims of America* 3, 6, 11 (Y. Haddad, F. Senzai, & J. Smith eds. 2009).

²³ Berrett, Church Educational System (CES), in 1 *Encyclopedia of Mormonism* 274, 275 (D. Ludlow ed. 1992).

²⁴ Brief for General Conference of Seventh-day Adventists et al. as *Amici Curiae* 7.

²⁵ Seventh-day Adventist Church, About Us, <https://adventisteducation.org/abt.html>.

Opinion of the Court

ment agreements and faculty handbooks specified in no uncertain terms that they were expected to help the schools carry out this mission and that their work would be evaluated to ensure that they were fulfilling that responsibility. As elementary school teachers responsible for providing instruction in all subjects, including religion, they were the members of the school staff who were entrusted most directly with the responsibility of educating their students in the faith. And not only were they obligated to provide instruction about the Catholic faith, but they were also expected to guide their students, by word and deed, toward the goal of living their lives in accordance with the faith. They prayed with their students, attended Mass with the students, and prepared the children for their participation in other religious activities. Their positions did not have all the attributes of Perich's. Their titles did not include the term "minister," and they had less formal religious training, but their core responsibilities as teachers of religion were essentially the same. And both their schools expressly saw them as playing a vital part in carrying out the mission of the church, and the schools' definition and explanation of their roles is important. In a country with the religious diversity of the United States, judges cannot be expected to have a complete understanding and appreciation of the role played by every person who performs a particular role in every religious tradition. A religious institution's explanation of the role of such employees in the life of the religion in question is important.

III

In holding that Morrissey-Berru and Biel did not fall within the *Hosanna-Tabor* exception, the Ninth Circuit misunderstood our decision. Both panels treated the circumstances that we found relevant in that case as checklist items to be assessed and weighed against each other in every case, and the dissent does much the same. That approach is contrary to our admonition that we were not imposing any

“rigid formula.” 565 U.S., at 190. Instead, we called on courts to take all relevant circumstances into account and to determine whether each particular position implicated the fundamental purpose of the exception.²⁶

The Ninth Circuit’s rigid test produced a distorted analysis. First, it invested undue significance in the fact that Morrissey-Berru and Biel did not have clerical titles. 769 Fed. Appx., at 460; 911 F.3d, at 608–609; *post*, at 779–780. It is true that Perich’s title included the term “minister,” but we never said that her title (or her reference to herself as

²⁶ The dissent charges that we transform the holding in *Hosanna-Tabor*, but that is what the dissent does. *Post*, at 772–773. According to the dissent: “*Hosanna-Tabor* charted a way to separate leaders who ‘personify’ a church’s ‘beliefs’ [and] ‘minister to the faithful’ from individuals who may simply relay religious tenets.” *Post*, at 772 (quoting 565 U.S., at 188, 195).

The dissent cobbles together this new test by taking phrases out of context from separate passages and inserting a proposition never suggested in *Hosanna-Tabor*, namely, that an individual cannot qualify for the exception if he or she “simply relay[s] religious tenets” without “‘minister[ing] to the faithful.’” *Post*, at 772. *Hosanna-Tabor* never adopted this unworkable test. It did not suggest that the exception it recognized applied only to “leaders.” *Post*, at 769, and n. 1. The term is never used in the opinion of the Court. Insisting on leadership as a qualification would shrink the exception even more than respondents advocate. For example, they agree that it should apply to nuns, see Brief for Respondents 21, but, under the dissent’s test, is every cloistered nun—or every cloistered monk—disqualified? And even if leadership were a requirement, why couldn’t a religious teacher be regarded as a leader of the students in the class?

Nor did our opinion in *Hosanna-Tabor* draw a critical distinction between a person who “simply relay[s] religious tenets” and one who relays such tenets while also “‘minister[ing] to the faithful.’” *Post*, at 772. A teacher, such as an instructor in a class on world religions, who merely provides a description of the beliefs and practices of a religion without making any effort to inculcate those beliefs could not qualify for the exception, but otherwise the distinction makes no sense. If a member of the Christian clergy or a rabbi spends almost all of his or her time studying Scripture or theology and writing instead of ministering to a congregation, would that individual fall outside the exception as understood by the dissent?

Opinion of the Court

a “minister”) was necessary to trigger the *Hosanna-Tabor* exception. Instead, “those considerations . . . merely made Perich’s case an especially easy one.” Brief for United States as *Amicus Curiae* 19. Moreover, both Morrissey-Berru and Biel had titles. They were Catholic elementary school *teachers*, which meant that they were their students’ primary teachers of religion. The concept of a teacher of religion is loaded with religious significance. The term “rabbi” means teacher, and Jesus was frequently called rabbi.²⁷ And if a more esoteric title is needed, they were both regarded as “catechists.”²⁸

Second, the Ninth Circuit assigned too much weight to the fact that Morrissey-Berru and Biel had less formal religious schooling than Perich. 769 Fed. Appx., at 460–461; 911 F. 3d, at 608; *post*, at 780–781. The significance of formal training must be evaluated in light of the age of the students taught and the judgment of a religious institution regarding the need for formal training. The schools in question here thought that Morrissey-Berru and Biel had a sufficient understanding of Catholicism to teach their students,²⁹ and judges have no warrant to second-guess that judgment or to impose their own credentialing requirements.

Third, the *St. James* panel inappropriately diminished the significance of Biel’s duties because they did not evince “close guidance and involvement” in “students’ spiritual lives.” 911 F. 3d, at 609; *post*, at 776, 781–782. Specifically, the panel majority suggested that Biel merely taught “religion from a

²⁷ See, e. g., Mark 9:5, 11:21; John 1:38, 3:26, 4:31, 6:25, 9:2.

²⁸ See App. to Pet. for Cert. in No. 19–267, at 56a, 60a; ER 593 (St. James) (“[T]eachers are expected to . . . engage in catechetical . . . development”); Record in No. 2:15–CV–04248 (CD Cal.), Doc. 67–1, ¶10 (“requir[ing]” attendance at “Catholic education conference” to “prepare teachers as religious educators”).

²⁹ The record also makes clear (contrary to the Ninth Circuit’s and dissent’s conclusion, *post*, at 781) that Morrissey-Berru and Biel “held themselves out” as authorities on religion to their students, and, by extension, their families. See *supra*, at 738–745.

book required by the school,” “joined” students in prayer, and accompanied students to Mass in order to keep them “‘quiet and in their seats.’” 911 F. 3d, at 609. This misrepresents the record and its significance. For better or worse, many primary school teachers tie their instruction closely to textbooks, and many faith traditions prioritize teaching from authoritative texts. See Brief for InterVarsity Christian Fellowship USA et al. as *Amici Curiae* 26; Brief for Senator Mike Lee et al. as *Amici Curiae* 24–27. As for prayer, Biel prayed with her students, taught them prayers, and supervised the prayers led by students. She prepared them for Mass, accompanied them to Mass, and prayed with them there. See *supra*, at 744.

In Biel’s appeal, the Ninth Circuit suggested that the *Hosanna-Tabor* exception should be interpreted narrowly because the ADA, 42 U.S.C. § 12101 *et seq.*, and Title VII, § 2000e–2, contain provisions allowing religious employers to give preference to members of a particular faith in employing individuals to do work connected with their activities. 911 F. 3d, at 611, n. 5; *post*, at 767. But the *Hosanna-Tabor* exception serves an entirely different purpose. Think of the quintessential case where a church wants to dismiss its minister for poor performance. The church’s objection in that situation is not that the minister has gone over to some other faith but simply that the minister is failing to perform essential functions in a satisfactory manner.

While the Ninth Circuit treated the circumstances that we cited in *Hosanna-Tabor* as factors to be assessed and weighed in every case, respondents would make the governing test even more rigid. In their view, courts should begin by deciding whether the first three circumstances—a ministerial title, formal religious education, and the employee’s self-description as a minister—are met and then, in order to check the conclusion suggested by those factors, ask whether the employee performed a religious function. Brief for Respondents 20–24. For reasons already explained, there is

Opinion of the Court

no basis for treating the circumstances we found relevant in *Hosanna-Tabor* in such a rigid manner.

Respondents go further astray in suggesting that an employee can never come within the *Hosanna-Tabor* exception unless the employee is a “practicing” member of the religion with which the employer is associated. Brief for Respondents 12–13, 21. In hiring a teacher to provide religious instruction, a religious school is very likely to try to select a person who meets this requirement, but insisting on this as a necessary condition would create a host of problems. As pointed out by petitioners, determining whether a person is a “co-religionist” will not always be easy. See Reply Brief 14 (“Are Orthodox Jews and non-Orthodox Jews coreligionists? . . . Would Presbyterians and Baptists be similar enough? Southern Baptists and Primitive Baptists?”). Deciding such questions would risk judicial entanglement in religious issues.

Expanding the “co-religionist” requirement, Brief for Respondents 28–29, 44, to exclude those who no longer practice the faith would be even worse, *post*, at 777–778. Would the test depend on whether the person in question no longer considered himself or herself to be a member of a particular faith? Or would the test turn on whether the faith tradition in question still regarded the person as a member in some sense?

Respondents argue that Morrissey-Berru cannot fall within the *Hosanna-Tabor* exception because she said in connection with her lawsuit that she was not “a practicing Catholic,” but acceptance of that argument would require courts to delve into the sensitive question of what it means to be a “practicing” member of a faith, and religious employers would be put in an impossible position. Morrissey-Berru’s employment agreements required her to attest to “good standing” with the church. See App. 91, 144, 154. Beyond insisting on such an attestation, it is not clear how religious groups could monitor whether an employee is abiding by all religious obligations when away from the job. Was OLG